



Commission finds Polish support for MAN Trucks factory expansion incompatible State aid

Brussels, 5 October 2026

The European Commission has concluded that Poland's plan to support the extension of capacity of a factory of truck producer MAN Trucks Sp. z o. o. in Niepołomice in the Małopolskie region is not in line with EU State aid rules. Therefore, Poland cannot disburse the aid.

The Commission investigation

In [July 2025](#), the Commission opened an in-depth investigation to assess whether the investment aid of around €26 million (PLN 116 million) that Poland granted to MAN Trucks for extending the capacity of the factory is in line with EU State aid rules.

Based on its preliminary assessment, the Commission had found that the investment project facilitates the economic development and employment in a less advantaged region of the EU. Nevertheless, the Commission had doubts as to whether the envisaged aid was in line with the Commission's [Guidelines on Regional State Aid \('RAG'\)](#).

Based on its in-depth investigation, the Commission has now concluded that Poland failed to prove that the aid was decisive for MAN Trucks to locate its investment in Poland, which is a requirement under the RAG. The evidence did not show that MAN would have invested in another location without the support. The Commission also found that Poland did not demonstrate that the proposed aid would have been the minimum necessary, so it would not have been proportionate.

As the public support did not have a real incentive effect since it did not effectively encourage MAN Trucks to invest in the specific region of Małopolskie, and as the amount of the support was not proportionate, the aid is incompatible with EU State aid rules. Therefore, the aid cannot be put into effect by Poland.

Background

EU State aid rules, in particular the [RAG](#), enable Member States to support the economic development and employment in the EU's less developed regions and to foster regional cohesion in the Single Market. The RAG set out the rules under which Member States can grant State aid to companies to support investments in the less advantaged regions of Europe.

To comply with the RAG, an aid measure must respect several conditions:

- the aid must have a real "incentive effect", in other words, it must effectively encourage the beneficiary to invest in a specific region;
- the aid must not exceed the regional aid ceiling applicable to the respective region and must be kept to the minimum necessary to attract the investment to the region;
- the aid must not have undue negative effects, such as the creation of excess capacity in a declining market;
- the aid must not directly cause the relocation of existing or closed down activities from elsewhere in the EU to the aided establishment; and
- the aid must not divert investment away from another region in the EU, which is as or more economically disadvantaged than the region where the aided investment takes place.

For more information

The non-confidential version of the decision will be made available under the case number SA.114436 in the [State aid register](#) on the Commission's [competition website](#) once any confidentiality issues have

been resolved. New publications of State aid decisions on the internet and in the Official Journal are listed in the [Competition Weekly e-News](#).

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Press contacts:

[Ricardo CARDOSO](#) (+32 2 298 01 00)

[Sara SIMONINI](#) (+32 2 298 33 67)

General public inquiries: [Europe Direct](#) by phone [00 800 67 89 10 11](#) or by [email](#)